



CHAPTER xcv.

An Act to confer additional powers upon the North Eastern Railway Company for the construction of new railways and other works and the acquisition of lands to authorise the construction of railways by the South Yorkshire Joint Line Committee and for other purposes. A.D. 1914.
[31st July 1914.]

WHEREAS it is expedient that the North Eastern Railway Company (in this Act called "the Company") should be empowered to make and execute the new railways widening and alteration of railway and other works by this Act authorised and to acquire the lands in this Act described and that the other powers in this Act mentioned should be conferred on the Company:

And whereas it is expedient that the South Yorkshire Joint Line Committee (in this Act called "the Joint Committee") should be empowered to construct the railways hereinafter described and to exercise the powers in this Act contained in reference thereto:

And whereas plans and sections showing the lines and levels of the works by this Act authorised and plans of the lands by this Act authorised to be acquired and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerks of the peace for the several counties and ridings within which the said works will be constructed and the said lands are situate which plans and sections and books of reference are in this Act respectively referred to as the deposited plans sections and books of reference:

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And whereas under an agreement dated the twenty-sixth day of March one thousand eight hundred and eighty-five made between the promoters of the Scarborough Bridlington and West Riding Junction Railways Company (in this Act called "the Scarborough Company") of the one part and the Company of the other part scheduled to the Scarborough Bridlington and West Riding Junction Railways Act 1885 the undertaking of the Scarborough Company is worked by the Company and it is expedient that the Scarborough Company should be amalgamated with the Company on the terms and in the manner hereinafter set forth :

And whereas the capital of the Scarborough Company consists of seventy-two thousand pounds four and a half per centum debenture stock and two hundred and forty-four thousand two hundred and forty pounds ordinary stock :

And whereas it is expedient that the Company should be empowered to lease or otherwise acquire the Brampton Branch Railway hereinafter mentioned :

And whereas it is expedient that the Company should be empowered to raise further capital and to apply their funds for the purposes aforesaid and for the general purposes of their undertaking :

And whereas it is expedient that the Midland Great Central Great Northern and Lancashire and Yorkshire Railway Companies and the Joint Committee should be empowered to apply their funds to the purposes of this Act in which they are interested :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited for all purposes as the North Eastern Railway Act 1914.

Incorporation of general Acts.

2. The following Acts and parts of Acts are so far as applicable (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say) :—

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The Lands Clauses Acts;

The Railways Clauses Consolidation Act 1845;

Part I. (relating to construction of a railway) and Part V. (relating to amalgamation) of the Railways Clauses Act 1863;

The Companies Clauses Consolidation Act 1845;

Part II. (relating to additional capital) of the Companies Clauses Act 1863 as amended by subsequent Acts; and

The Harbours Docks and Piers Clauses Act 1847 except sections 12 33 and 82 thereof and the provisions thereof with respect to lifeboats and with respect to keeping a tide and weather gauge:

Provided that the following expressions used in the Harbours Docks and Piers Clauses Act 1847 shall have the following respective meanings (that is to say):—

The expressions “packet boat” and “post office packet” mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and the expression “post office bag of letters” means a mail bag as defined by the same Act:

Provided that nothing in the Harbours Docks and Piers Clauses Act 1847 or in this Act shall extend to exempt from rates or duties any such vessel as aforesaid if she also conveys passengers or goods for hire.

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings And—

Interpretation.

The expression “the railways” means the new railways and widening and alteration of railway by this Act authorised;

The expression “the river wall” means the river wall or quay by this Act authorised.

4. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if “local authority” were mentioned in those sections in addition

Protection of gas and water mains of local authorities.

A.D. 1914. to "company or society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated.

Power to
Company to
make rail-
ways.

5. Subject to the provisions of this Act the Company may in the lines shown on the deposited plans and according to the levels shown on the deposited sections make and maintain the railways and widening and alteration of railway hereinafter described with all proper stations sidings approaches roads works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference relating thereto as may be required for those purposes and for any other purposes connected with their undertaking.

The railways hereinbefore referred to and authorised by this Act are—

In the county of Northumberland—

A Railway No. 1 (2 furlongs 4·4 chains in length) in the urban district of Longbenton commencing by a junction with the Company's Newcastle and Berwick Railway and terminating by a junction with the Company's Blyth and Tyne Railway;

A widening and alteration (1 mile 2 furlongs in length) of the Company's Newcastle and Berwick Railway in the urban district of Longbenton commencing about sixty yards south of Killingworth Station and terminating about five hundred and seventy yards south of Forest Hall Station:

In the north riding of the county of York—

A Railway No. 2 (2 miles 2 chains in length) in the parishes of Wilton and Kirkleatham commencing by a junction with the Company's Darlington and Saltburn Railway and terminating about one hundred yards south of Redcar Wharf;

A Railway No. 3 (2 furlongs 5·5 chains in length) in the county borough of Middlesbrough commencing at the south end of the Company's West Marsh Branch and terminating by a junction with the said branch about ninety yards west of the bridge carrying the said branch over the road leading from Metz Bridge to Connals Wharf.

6.—(1) On the completion and opening for public traffic of Railway No. 3 the Company may abandon and discontinue the use of so much of their West Marsh Branch as will be rendered unnecessary by the construction of the said Railway No. 3.

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Abandonment of portion of railway.

(2) The Company may hold sell or dispose of or apply to the purposes of their undertaking the site and soil of any part of the portion of railway so abandoned and discontinued.

7. All corporations companies or persons now entitled to any rights of user or other rights or privileges on over or in respect of the portion of the Company's West Marsh Branch by this Act authorised to be abandoned shall be entitled to and may exercise the same rights and privileges on over or in respect of Railway No. 3 by this Act authorised and to the same extent and subject to the same terms and conditions and for the same periods as they are now entitled to or may exercise on over or in respect of the said portion of the Company's West Marsh Branch.

Exercise over new railway of existing rights over portion of railway abandoned.

8. The railways and widening and alteration of railway referred to in the section of this Act whereof the marginal note is "Power to Company to make railways" shall for the purposes of tolls rates and charges and for all other purposes whatsoever be part of the undertaking of the Company and the Company may demand receive and take in respect of the Railways Nos. 1 and 2 and the widening and alteration of railway by this Act authorised for the conveyance of merchandise thereon (including perishable merchandise by passenger train) the maximum rates and charges authorised by the Railway Rates and Charges No. 15 (North Eastern Railway &c.) Order Confirmation Act 1892 and for the conveyance thereon of passengers and parcels by passenger train the rates and charges authorised by the North Eastern Railway Company's Act 1854 the North Eastern and Stockton and Darlington Railways Amalgamation Act 1863 the North Eastern Railway Company's (Pelaw and other Branches) Act 1865 and the North Eastern Railway Company's (New Lines) Act 1874:

Rates to be taken by Company.

Provided that in respect of the conveyance of a consignment of perishable merchandise not exceeding fifty-six pounds in weight by passenger train the Company shall not be entitled to charge a higher rate than the maximum rate which they are authorised to charge for the conveyance of parcels of the same weight.

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The Company may demand receive and take in respect of Railway No. 3 by this Act authorised the same tolls rates and charges as they are now authorised to take in respect of the portion of their West Marsh Branch by this Act authorised to be abandoned.

For protec-
tion of Long-
benton Urban
District
Council.

9. For the protection of the urban district council of the urban district of Longbenton (in this section respectively referred to as "the council" and "the district") the following provisions shall notwithstanding anything contained in this Act or shown upon the deposited plans and sections have effect unless otherwise agreed upon in writing between the Company and the council (that is to say):—

- (1) The Company shall at their own expense in all things construct the bridge intended to carry the widening and alteration of the Company's existing Newcastle and Berwick Railway over the Great Lime Road in the district and numbered 26 on the deposited plans for the district so that the span thereof shall not be less than thirty-five feet between the abutments:
- (2) The Company shall when they renew the existing bridge carrying the Company's existing Newcastle and Berwick Railway over the aforesaid Great Lime Road and before or contemporaneously with the construction of the bridge for which provision is made in the preceding subsection renew the existing bridge so that the span thereof shall not be less than thirty-five feet between the abutments and so that the bridge so renewed and the bridge to be constructed as provided in subsection (1) of this section when so constructed shall together form one bridge with the span thereof not less than thirty-five feet between the abutments:
- (3) So soon as the said existing bridge shall be renewed the council shall pay to the Company the sum of four hundred and fifty pounds which sum shall be deemed to be expenses incurred in the execution of the Public Health Act 1875:
- (4) The Company shall construct the bridge intended to carry the road from Forest Hall to Benton in the district and numbered 61 on the deposited plans for the district over the Company's existing Newcastle

and Berwick Railway and the widening and alteration thereof by this Act authorised of a width between the parapets of thirty-five feet and shall also make the approaches to such bridge throughout of a like width. A.D. 1914.

10. Subject to the provisions of this Act the Company may make the works hereinafter described and may exercise the powers hereinafter mentioned and may enter upon take and use the lands delineated on the deposited plans and described in the deposited books of reference relating thereto and so far as the said works are shown on the deposited plans and sections the Company may make the same in the lines and in accordance with the levels shown on the said plans and sections :— Power to make further works.

In the north riding of the county of York—

They may in the parishes of Wilton and Kirkleatham and on the foreshore of the River Tees construct and maintain a river wall or quay commencing about eighty yards north-east of Ninth Buoy Front Light and terminating about seventy yards south of Redcar Wharf and they may by means of the river wall enclose reclaim and use the foreshore included within the limits shown on the deposited plans :

They may from time to time make entrances from or to the River Tees through the river wall with all necessary and convenient locks gates piers walls and other works :

They may from time to time in connection with and for the purposes of the river wall or the enclosing reclaiming and use of the foreshore to be enclosed and reclaimed as aforesaid make and maintain all necessary and proper bridges booms approaches roads warehouses sheds buildings yards shipping places graving docks gridirons wharves custom houses watch houses staiths spouts jetties stairs landing places stages quays walls fences gates entrances slips cranes hydraulic and other lifts dolphins buoys moorings mooring chains sewers drains culverts sluicing apparatus railways tramways stations pumping arrangements and other works and conveniences :

They may from time to time deepen dredge scour cleanse alter and improve the bed shores and channel of the

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River Tees adjoining or near to any works made by them in connection with the river wall:

Provided that no materials excavated or dredged under the provisions of this section shall be deposited below high-water mark otherwise than in such position and under such restrictions as may be fixed by the Board of Trade:

They may in the parishes of Wilton and Kirkleatham stop up and discontinue so much of the footpath leading from Grangetown Station to South Gare Breakwater upon the existing High Water Reclamation Embankment as lies between points on that footpath respectively at or adjoining the north corner of the Lackenby Ironworks Slag Tip and about eight hundred and thirty yards south-west of the said breakwater:

They may in the parish of Carlton Miniott in substitution for so much of the footpath leading from Sand Hutton to Thirsk as crosses their York and Newcastle Railway and sidings on the level about four hundred yards north of Thirsk Station make a footbridge over their said railway and sidings and so soon as the said footbridge is completed and opened to the public they may stop up and abolish the said level crossing. On such footbridge being completed and opened to the public as aforesaid the Thirsk Rural District Council shall contribute and pay to the Company the sum of two hundred pounds and such payment shall be deemed to be expenses of the said council under and for the purposes of the Public Health Act 1875 and shall be defrayed as general expenses of the said council.

River wall to form part of Company's undertaking at Middlesbrough.

11. The river wall and the works in connection therewith shall for the purposes of dues rates and charges form part of the dock undertaking of the Company at Middlesbrough and the provisions of the Acts of Parliament relating to that undertaking shall so far as the same are applicable apply and extend to the river wall and works.

River wall to be included in adjoining parishes.

12. So much of the river wall and the works in connection therewith as are made and constructed in and upon the foreshore and bed of the River Tees beyond the present limits of any civil parish shall be included for all purposes as to the part adjoining thereto in the parish of Wilton and as to the part adjoining thereto in the parish of Kirkleatham.

13. The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consent or approval If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

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Works
below high-
water mark
not to be
commenced
without
consent of
Board of
Trade.

14. The Company shall at or near the outer extremity of their works below high-water mark in the River Tees exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House Deptford Strond and the Tees Conservancy Commissioners shall from time to time direct.

Permanent
lights on
works in
River Tees.

If the Company fail to comply in any respect with the provisions of the present section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

15. The Company shall at or near the works below high-water mark in the River Tees hereby authorised during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade and the Tees Conservancy Commissioners from time to time require or approve.

Lights to be
exhibited
during con-
struction of
works in
River Tees.

If the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

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Abatement
of work
abandoned or
decayed.

16. If a work constructed by the Company under the powers of this Act on in over through or across tidal lands or tidal water is abandoned or suffered to fall into decay the Board of Trade may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Company and the amount of such expense shall be a debt due from the Company to the Crown and be recoverable as a Crown debt or summarily.

Survey of
works by
Board of
Trade.

17. If at any time the Board of Trade deem it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Company under this Act on in over through or across tidal lands or tidal water or of the intended site of any such work the Company shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Company to the Crown and be recoverable as a Crown debt or summarily.

Provisions
against dan-
ger to navi-
gation in
River Tees.

18. In case of injury to or destruction or decay of the river wall or any part thereof the Company shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Tees Conservancy Commissioners and shall apply to that authority for directions as to the means to be taken and the Company shall be liable to a penalty not exceeding ten pounds for every calendar month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

Limits of
jurisdiction
of master of
river wall.

19. The limits within which the powers of the master of the river wall by this Act authorised shall be exercised under and subject to the provisions of the Harbours Docks and Piers Clauses Act 1847 shall extend to a distance of seventy-five yards measured in every direction riverward from the river wall and the jurisdiction of the master of the river wall conferred by this Act shall be limited to vessels going to moored at or departing from the river wall and shall not be exercised so as to affect vessels navigating or at anchor in the channel of the River Tees unless such vessels shall obstruct the approach to the river wall:

Provided that nothing contained in this Act or in any byelaws or regulations at any time made by the Company in respect of the river wall or any powers conferred upon the

master of the river wall by this Act or any such byelaws or regulations shall interfere with the powers of the harbourmaster acting under the authority of the Tees Conservancy Commissioners or otherwise and such last-mentioned powers may be exercised over all vessels in the river in the same manner and to the same extent as if this Act and such byelaws and regulations had not been passed or made. A.D. 1914.

20. For the protection of the Tees Conservancy Commissioners (in this section called "the commissioners") the following provisions shall unless otherwise agreed in writing have effect:— For protection of Tees Conservancy Commissioners.

(1) Notwithstanding anything shown on the deposited plans and sections or contained in the deposited books of reference or in this Act the Company shall not construct in the River Tees any work westward or riverward of the commissioners one-third tide river training wall in the parishes of Wilton and Kirkleatham :

(2) Before interfering with the one-third tide river training wall or making any entrance from or to the river through the river wall by this Act authorised the Company shall execute to the reasonable satisfaction of the commissioners upon lands to be acquired by the Company all such works as may be reasonably necessary to prevent any sand silt or other materials which may have accumulated southward or landward of the one-third tide river training wall or the river wall from falling or being washed into the navigable channel of the river :

(3) The river wall and the works connected therewith by this Act authorised to be made and maintained on the bed or foreshore of the River Tees shall be constructed by the company of sufficient strength and depth to admit of the ground immediately in front thereof being removed from time to time by dredging or otherwise to a depth of thirty feet at a distance of forty feet from the face of the river wall below low-water ordinary spring tides Provided that nothing in this Act shall impose any obligation upon the commissioners to dredge or deepen the river to the depth aforesaid :

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- (4) Before executing any works in the parishes of Wilton and Kirkleatham or either of them which will or may interfere with the free and uninterrupted passage into the tidal waters of the River Tees of all waters to be discharged from the outlet sluices and works constructed by the commissioners at Dabholme Beck in the parish of Kirkleatham the Company shall execute upon lands to be acquired by them and thereafter maintain to the reasonable satisfaction of the commissioners all such works as may be reasonably necessary to secure such passage :
- 5) Before commencing any of the works provided for in subsections (2) and (4) of this section and before commencing the river wall or any entrance from or to the River Tees through the river wall or any other works by this Act authorised (not being merely works of maintenance or repair) in or over the bed or foreshore of the River Tees the Company shall submit to the commissioners for their approval and deliver to the commissioners for their use plans and sections thereof in duplicate and such works shall not be commenced unless and until the commissioners shall have expressed their approval of such plans and sections in writing Provided that if the commissioners do not within one month after the receipt of such plans and sections signify their disapproval thereof they shall be deemed to have duly approved of the same Provided further that the approval of the commissioners shall not be unreasonably withheld :
- (6) All works constructed by the Company on the bed or foreshore of the River Tees shall be constructed repaired and maintained by the Company to the reasonable satisfaction of the commissioners and so as in no way to interfere with the navigable channel of the river or obstruct impede or interfere with the free and uninterrupted use and safe navigation of the river and the Company shall allow the engineer of the commissioners or any person or persons appointed by the commissioners from time to time and at any time or times either during

the carrying out of the works in this subsection referred to or afterwards to inspect and survey all or any of such works and shall afford to him and them all reasonable facilities for so doing : A.D. 1914.

- (7) Notwithstanding anything in this Act contained the Company shall not dredge scour cleanse alter or improve the bed shores or channel of the River Tees except in accordance with plans and sections to be previously submitted to and reasonably approved by the commissioners :
- (8) All materials excavated from the bed or foreshore of the River Tees in the construction maintenance or removal of any of the works aforesaid shall be removed by and at the expense of the Company and shall not be allowed nor shall any materials being or about to be used in the construction maintenance or removal of the works or any part thereof be allowed to fall or be washed into the navigable channel of the river :
- (9) All responsibility in connection with the before-mentioned works whether of construction or maintenance or of damage caused thereby or by the existence or removal thereof shall remain with the Company and the commissioners shall not be liable for any damage or injury to such works caused by any of their operations for the improvement of the River Tees or arising from the navigation of any craft vessel or dredger belonging to them unless such damage or injury shall arise from the wilful or negligent conduct of the commissioners or their agents or servants :
- (10) The liability of the commissioners to maintain the outlet sluices and other works constructed by them at Dabholme Beck and so much of their High Water Reclamation Embankment and works (other than the one-third tide river training wall so far and so long as the river wall shall be constructed and maintained upon the site thereof) as shall be acquired by the Company in the parishes of Wilton and Kirkleatham shall as from the date of the acquisition of such sluices embankment and works be transferred to and

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imposed upon the Company and the commissioners shall be freed and discharged from all liability to maintain the same and the portion of the one-third tide training wall acquired by the Company :

- (11) If any difference shall arise between the Company and the commissioners touching subsections (2) (3) (4) (5) (6) and (7) of this section or anything to be done or not to be done thereunder such difference shall be referred to and determined by an engineer to be appointed in default of agreement by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

Power to
Company to
purchase
additional
lands.

21. Subject to the provisions of this Act the Company in addition to the other lands which they are by this Act authorised to acquire may enter upon take use and appropriate for the purpose of altering or extending their works or providing further or improved accommodation for the traffic on their railway or providing accommodation for persons of the working class who may be displaced under the powers of this Act or any other Act relating to the Company or for any purposes connected with their undertaking or ancillary thereto all or any of the lands hereinafter described or referred to and delineated on the deposited plans and described in the deposited books of reference relating thereto (that is to say):—

In the county of Northumberland—

Certain lands in the urban district of Prudhoe situate on the north side of and adjoining the Company's Newcastle and Carlisle Railway and extending for a distance of about four hundred yards in a westerly direction from Mickley Station ;

Certain lands in the parish of Twizell situate on the north side of and adjoining the Company's Kelso Branch and on the north-east side of and near Twizell Station :

In the county of Durham—

Certain lands in the borough of Jarrow lying between the Company's Pelaw and South Shields Railway and the western end of Grange Road West adjoining Palmers Sidings ;

Certain lands in the county borough of West Hartlepool situate on the east side of and adjoining the Company's Stockton and Hartlepool Railway and on the north side of and adjoining the Station Hotel at Seaton Carew; A.D. 1914.

Certain lands in the parish of Preston-le-Skerne situate between the Company's Simpasture Branch and Ricknall Lane and to the east of the Company's York and Newcastle Railway;

Certain lands in the parish of Cockerton abutting upon the Company's Stockton and Darlington Railway at Charity Junction and on the Company's Darlington and Barnard Castle Railway and lying between the road leading from West Auckland to Cockerton and the said Stockton and Darlington Railway and extending in a northerly direction from the said Darlington and Barnard Castle Railway for a distance of about one thousand five hundred yards and in connection therewith the Company may stop up the footpath from Auckland Road to the junction of the road from Rise Carr Farm with Honeypot Lane and may stop up and extinguish all other public rights of way over the said lands. Provided that before the Company stop up the said footpath they shall provide in lieu of so much thereof as lies to the north of the southern boundary fence of the Company's Darlington and Barnard Castle Railway a bridle way not less than twelve feet in width for the use of the public between Auckland Road and the junction of the road from Rise Carr Farm with Honeypot Lane to be formed of ashes or gravel and to be constructed to the north of the said railway and at a distance not exceeding one hundred feet from the northern fence thereof and the Company shall also permit a public right of bridle way along the western and northern boundary fences of the field numbered on the deposited plans 29 in the parish of Cockerton and thence to the northern extremity (along the western boundary) of the said lands:

In the east riding of the county of York—

Certain lands in the urban district of Filey situate on the east side of and adjoining the Company's Hull and

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Scarborough Railway and on the north side of and adjoining their goods yard at Filey Station :

In the west riding of the county of York—

Certain lands in the urban district of Selby situate on the west side of and adjoining the Company's Selby Station on their York and Doncaster Railway ;

Certain lands in the urban district of Garforth situate upon the north side of and adjoining the Company's Leeds and Selby Railway between the Company's Garforth Station and Black Pits Signal Box and certain lands in the said urban district upon the south side of and adjoining the said railway west of and adjoining the said signal box ;

Certain lands in the parish of Sherburn-in-Elmet situate on the north side of and adjoining the Company's goods yard at South Milford Station.

Stopping up
footpaths
without
providing
substitute.

22. Where this Act authorises the stopping up of a footpath or portion thereof without providing a substitute such stopping up shall not take place unless the Company are owners in possession of all houses and lands on both sides thereof except so far as the owners lessees and occupiers of such houses and lands may otherwise agree and from and after such stopping up all rights of way over or along the footpath or portion authorised to be stopped up shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the footpath or portion of footpath so stopped up :

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Owners may
be required
to sell parts
only of
certain
properties.

23. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole

can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:— A.D. 1914.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the

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tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:

- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner:
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part

thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845. A.D. 1914.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

24. Subject to the provisions of this Act the Joint Committee may in the lines shown on the deposited plans and according to the levels shown on the deposited sections relating thereto make and maintain the new railways hereinafter described with all proper stations sidings approaches roads works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for that purpose:—

Power to
South York-
shire Joint
Line Com-
mittee to
construct
new railways.

In the west riding of the county of York and the county of Nottingham—

A Railway No. 4 (3 miles 4 furlongs 4 chains in length) situate in the urban district of Tickhill and the parishes of Styrrup and Harworth commencing in the urban district of Tickhill by a junction with the South Yorkshire Joint Railway about eighty yards south of the bridge carrying that railway over Grey-stone Lane and terminating in the said parish of Harworth about seventy yards measured in a north-easterly direction from the junction of the road leading from Harworth to Serlby Hall Lodge with the road leading from Harworth to Blyth:

A Railway No. 5 (2 furlongs 4·5 chains in length) in the urban district of Tickhill commencing by a junction with the South Yorkshire Joint Railway about twenty yards north-east of the bridge carrying Apy Hill Lane over that railway and terminating by a junction with Railway No. 4.

25. The Railways No. 4 and No. 5 by this Act authorised shall for the purposes of tolls rates and charges and for all other purposes whatsoever form part of the joint railways as defined in the South Yorkshire Joint Railway Act 1903 and the provisions of that Act shall apply to the said railways and to the Company the Midland Great Central Great Northern and Lancashire and Yorkshire Railway Companies and the Joint Committee in respect thereof as fully as if they had been railways authorised by that Act.

Railways
Nos. 4 and 5
to form part
of South
Yorkshire
Joint Rail-
ways.

A.D. 1914.

Height and
span of
bridge.

26. The Joint Committee may make the arch of the bridge for carrying Railway No. 4 over the public road numbered on the deposited plans 29 in the urban district of Tickhill when diverted of a height of fifteen feet and a span of twenty feet.

Power to
acquire ease-
ment over
River Torne.

27. The Joint Committee instead of taking any portion of the River Torne numbered on the deposited plans 67 in the urban district of Tickhill and 1 in the parish of Styrrup respectively may purchase and take an easement or right of making and maintaining Railway No. 4 over the said river without being compelled to purchase the said river or any part thereof and the owners of and other persons interested in the said river may and shall convey and grant to the Joint Committee such easement or right accordingly and any compensation payable by the Joint Committee in respect of such easement or right shall be determined in manner provided by the Lands Clauses Acts for determining the amount of compensation payable in respect of the taking of lands otherwise than by agreement.

For protec-
tion of West
Riding
County
Council.

28. For the protection of the county council of the west riding of Yorkshire (in this section called "the county council") the following provisions shall have effect unless otherwise agreed in writing between the county council and the Joint Committee (that is to say):—

- (1) The bridge for carrying the Balby and Worksop main road numbered 57 on the deposited plans in the urban district of Tickhill over Railway No. 4 by this Act authorised shall be of not less width than thirty-five feet and the parapets of such bridge shall be as far as practicable parallel with the fences of the said road :
- (2) The said bridge shall be of a strength to carry a rolling load of thirty tons upon a four-wheeled carriage having a wheel base of twelve feet ten inches and drawn by a locomotive weighing twenty tons with a wheel base of ten feet :
- (3) The bridge for carrying the said railway over the Bawtry and Tinsley main road numbered 26 on the deposited plans in the said district shall be a flat girder bridge having a width of not less than thirty-five feet between the abutments thereof and such

abutments shall be constructed as far as practicable parallel with the fences of the said road. Such bridge shall have a clear headway throughout of not less than eighteen feet from the surface of the said road to the underside of the bridge and shall be constructed and maintained as far as practicable drop dry at all times: A.D. 1914.

(4) The Joint Committee shall not alter the level or gradient of either of the said roads:

(5) The Joint Committee shall not commence to construct any works which will interfere with the said main roads nor to construct any temporary or substituted road in accordance with the provisions of the Railways Clauses Consolidation Act 1845 until they have given to the surveyor of the county council not less than twenty-eight days' notice in writing of their intention so to commence such works accompanied by plans sections and specifications showing the nature of the said works so far as they affect the said roads and the position width and mode of formation of any such temporary or substituted road nor until plans sections and specifications as aforesaid have been approved by the said surveyor or in case of difference between him and the Joint Committee by an arbitrator to be appointed as hereinafter provided. Provided always that if the said surveyor does not within twenty-eight days after service of any notice plans sections and specifications signify in writing his approval or disapproval thereof or other his directions in relation thereto he shall be deemed to have approved the same. And the Joint Committee shall comply with all reasonable directions and requirements of the county council in relation to the execution of the said works so far as they affect the said roads:

(6) Any such temporary or substituted road as aforesaid shall be properly drained and kept in repair by the Joint Committee to the reasonable satisfaction of the surveyor of the county council:

(7) If any difference shall arise between the Joint Committee and the county council as to the true intent and meaning of any of the provisions of this section

A.D. 1914.

or anything to be done or not to be done thereunder or as to the reasonableness of any requirements or directions given or made by or on behalf of the county council under the provisions of this section such difference shall be settled by an engineer to be agreed upon or failing agreement to be appointed as arbitrator by the Board of Trade on the application of either of the parties in difference after notice to the other and subject as aforesaid the Arbitration Act 1889 shall apply.

For protection of Blyth and Cuckney Rural District Council.

29. Notwithstanding anything contained in this Act or shown on the deposited plans and sections the Joint Committee shall construct the road in lieu of the road numbered on the deposited plans 25 and thereon marked "Road to be diverted" in the parishes of Harworth and Styrrup and the bridge carrying the same over Railway No. 4 of a clear width of not less than thirty feet between the fences thereof.

For protection of Viscount Galway.

30. For the protection of the Right Honourable George Edmund Milnes Viscount Galway and his sequels in estate (all of whom are in this section included in the expression "Lord Galway") the following provisions shall unless otherwise agreed in writing have effect (that is to say):—

Notwithstanding anything contained in this Act or shown upon the deposited plans the Joint Committee shall not in the construction of Railway No. 4 in the parish of Harworth deviate from the centre line as shown on the said plans for that parish further to the north than is reasonably necessary for the convenient construction of the railway and of the diversion of the road from Harworth to Blyth.

For protection of Great Northern Railway Company.

31. For the protection of the Great Northern Railway Company the following provisions shall unless otherwise agreed between the Joint Committee and the Great Northern Railway Company (in this section called "the Great Northern Company") apply and have effect:—

(1) Notwithstanding anything contained in this Act or shown upon the deposited plans the Joint Committee shall not without the consent of the Great Northern Company (which consent shall not be unreasonably withheld)—

(i) Enter upon take use or interfere with any part of the lands numbered on the deposited plans 5 in the parish of Harworth; or A.D. 1914.

(ii) Use any other land or execute any works so as to unreasonably interfere with (A) the construction maintenance or user of any of the railways roads lines connections or sidings to be constructed or provided under or in pursuance of section 32 of the Great Northern Railway Act 1911 by the Great Northern Company or the person or company included by the said section 32 in the expression "the lessee" or (B) the exercise of the easements or rights granted or to be granted to the Great Northern Company under or in pursuance of the said section:

(2) The Great Northern Company shall have power to make a connection with the Railway No. 4 by this Act authorised at a point and in accordance with plans and sections to be agreed between the Great Northern Company and the Joint Committee or failing agreement to be settled by arbitration:

(3) In constructing and maintaining or using such connection the Great Northern Company shall in all respects be subject to the provisions relating to junctions contained in Part I. of the Railways Clauses Act 1863 and such provisions shall apply and have effect accordingly:

(4) If any difference shall arise between the Joint Committee and the Great Northern Company under this section such difference shall be determined by an engineer to be appointed (failing agreement) by the President of the Institution of Civil Engineers on the application of either party.

32. If the new railways are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company or the Joint Committee respectively for making and completing the new railways or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Period for completion of new railways.

33. If the Company or the Joint Committee as the case may be fail within the period limited by this Act to complete the new railways which they are respectively empowered to Imposing penalty if new railways not opened

A.D. 1914.
—
within period
limited.

construct and open the same for public traffic they shall respectively be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the railway in respect of which the penalty has been incurred is completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the railway in respect of which such penalty has been incurred.

The said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854.

Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster-General for and on behalf of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as hereinafter provided.

But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company or the Joint Committee as the case may be were prevented from completing or opening the railway in respect of which the penalty has been incurred by unforeseen accident or circumstances beyond their control Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

Application
of penalty.

34. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway in respect of which the penalty has been incurred or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company or the Joint Committee as the case may be by this Act for the purposes of such railway and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compen-

sation as aforesaid in such manner and in such proportions as to the High Court may seem fit. A.D. 1914.

If no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company or the Joint Committee as the case may be is insolvent or the railway or railways in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Company or the Joint Committee as the case may be for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the Company or the Joint Committee as the case may be.

35. In constructing the works by this Act authorised the Company or the Joint Committee may deviate from the lines of any of the said works shown on the deposited plans thereof to the extent of the limits of deviation marked on the deposited plans and may deviate from the levels of any of the said works (other than the railways) shown on the deposited sections thereof to any extent not exceeding two feet but not so as to increase the rate of inclination of any new or diverted road as shown on the said sections and may deviate from the levels of the railways shown on the deposited sections in accordance with the provisions of the Railways Clauses Consolidation Act 1845 Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

Power to deviate in construction of works.

36. The Company or the Joint Committee as the case may be shall be deemed not to be an owner or occupier for the purposes of section 150 of the Public Health Act 1875 in respect of any land acquired or used by the Company or the Joint Committee under the powers or for the purposes of this Act upon which any street as defined by the Public Health Acts and not being a highway repairable by the inhabitants at large shall wholly or partially front adjoin or abut and which shall at the time of the laying out of such street be used by the Company or the Joint Committee solely as a part of their

Railways abutting but not communicating with streets not to be chargeable with private street expenses.

A.D. 1914. — lines of railway or sidings stations or works and shall have no direct communication with such street and the expenses incurred by any urban or rural authority under the powers of the said section which but for this provision the Company or the Joint Committee would be liable to pay shall be repaid to the urban or rural authority as the case may be by the owners of the premises fronting adjoining or abutting on the said street other than the Company or the Joint Committee and in such proportions as shall be settled by the surveyor of the urban or rural authority as the case may be and in the event of the Company or the Joint Committee subsequently making a communication with such street they shall notwithstanding such repayment as last aforesaid pay to the urban or rural authority as the case may be the expenses which but for the foregoing provision the Company or the Joint Committee would in the first instance have been liable to pay and the urban or rural authority as the case may be shall divide among the owners for the time being other than the Company or the Joint Committee the amount so paid by the Company or the Joint Committee to the urban or rural authority as the case may be less the costs and expenses attendant upon such division in such proportion as shall be settled by the said surveyor whose decision shall be final and conclusive Provided that this section shall not apply to any street existing at the date of the passing of this Act.

As to rights
of way over
lands
acquired.

37. Subject to the provisions of this Act all private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Company or the Joint Committee as the case may be shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Power to
divert roads.

38. The Company or the Joint Committee as the case may be may divert the roads referred to in the following table in the manner shown upon the deposited plans and sections and subject to the provisions of this Act may stop up and cause to be discontinued as a road so much of each existing road as will be rendered unnecessary by the new portion of road so shown on the said plans (that is to say):—

Railway.	Parish or other Area.	No. of Road on Plans.	A.D. 1914.
Widening and alteration of Newcastle and Berwick Railway.	Urban district of Longbenton -	61.	
No. 4 - - - -	Urban district of Tickhill - -	12 19 29 38 41 44.	
No. 4 - - - -	Parish of Harworth - - -	25.	
No. 4 - - - -	Parish of Styrrup - - -	25 27.	

39. Where this Act authorises the diversion of a road or the making of a new road and the stopping up of an existing road or portion thereof such stopping up shall not take place until such new road is completed to the satisfaction of the road authority and is open for public use or in case of difference between the Company or the Joint Committee and the road authority until two justices shall have certified that the new road has been completed to their satisfaction and is open for public use.

Stopping up roads in case of diversion.

Before applying to the justices for their certificate the Company or the Joint Committee as the case may be shall give to the road authority of the district in which the existing road is situate seven days' notice in writing of their intention to apply for the same.

As from the completion to the satisfaction of the road authority of the new road or as from the date of the said certificate as the case may be all rights of way over or along the existing roads or portions authorised to be stopped up shall be extinguished and the Company or the Joint Committee as the case may be may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of road stopped up as far as the same is bounded on both sides by lands of the Company or the Joint Committee as the case may be :

Provided that the Company or the Joint Committee as the case may be shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

A.D. 1914.

As to repair
of roads
where level
not perma-
nently
altered.

40. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company or the Joint Committee shall not be liable to maintain the surface of any road or public highway which shall be carried over the railways or any of them by a bridge or bridges or the immediate approaches thereto except so far as the level of such road highway or approaches is permanently altered so as to increase the gradient.

Provisions
as to repair
of roads and
footpaths.

41. Any road or footpath or portion of road or footpath to be made diverted or altered under the authority of this Act (except the stone iron or other structure carrying any such road or footpath over the railway which structure shall unless otherwise agreed be maintained by and at the expense of the Company or the Joint Committee as the case may be) shall when made and completed unless otherwise agreed be maintained by and at the expense of the body or persons liable to maintain roads or footpaths of the same nature and in the same parish and district as the road or footpath or portion of road or footpath in question.

As to pre-
scribed dis-
tance under
section 78 of
Railways
Clauses Con-
solidation
Act 1845.

42. For the purposes of the application of the Railways Clauses Consolidation Act 1845 to the works hereunder mentioned the prescribed distance referred to in section 78 of that Act shall in respect of the lands hereunder referred to be as follows :—

Work.	Parish or other Area.	Number of Lands on deposited Plans.	Prescribed Distance.
Widening and alteration of Newcastle and Berwick Railway.	Urban district of Longbenton.	No. 1 and Nos. 8 to 40 inclusive.	Yards. 160
Railway No. 1 -	Urban district of Longbenton.	Nos. 1 to 7 inclusive -	130
Widening and alteration of Newcastle and Berwick Railway.	Urban district of Longbenton.	Nos. 92 98 99 and 106 to 113 inclusive.	130
Railway No. 4 -	Parish of Styrrup -	Nos. 10 11 14 15 and 16 -	150

Period for
compulsory
purchase of
lands.

43. The powers of the Company or the Joint Committee as the case may be for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

44. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company or the Joint Committee as the case may be any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

A.D. 1914.
Power to
owners to
grant ease-
ments &c.

45. The Company or the Joint Committee as the case may be and their surveyors officers contractors and workmen may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings by this Act authorised to be taken and used as aforesaid or any of them for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings.

Power to
enter upon
property for
survey and
valuation.

46. The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Company or the Joint Committee as the case may be award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Company or the Joint Committee as the case may be by the claimant giving sufficient particulars and in sufficient time to enable the Company or the Joint Committee as the case may be to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Company or the Joint Committee as the case may be have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant. Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Company or the Joint Committee as the case may be to amend the statement in writing of the claim

Costs of
arbitration
in certain
cases.

A.D. 1914. delivered by him to the Company or the Joint Committee as the case may be in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Company or the Joint Committee as the case may be if they object to the amendment and such amendment shall be subject to such terms enabling the Company or the Joint Committee as the case may be to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

Compensation in case of recently altered buildings.

47. In settling any question of disputed purchase money or compensation payable under this Act by the Company or the Joint Committee as the case may be the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the eighteenth day of November one thousand nine hundred and thirteen if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Extension of time for completion of Hull and Doncaster widening.

48. The period limited by the North Eastern Railway Act 1909 for the completion of the widening of the Company's Hull and Doncaster Railway thereby authorised is hereby extended for a period of three years from the twentieth day of September one thousand nine hundred and fourteen and section 19 of the said Act shall be read and construed as if the period limited by this Act for the completion of the said widening had been the period limited by the said Act of 1909 for the completion thereof.

If the said widening is not completed within the period limited by this Act with reference thereto then on the expiration of that period the powers of the said Act of 1909 as extended by this Act for making and completing the same shall cease except as to so much thereof as shall be then completed.

49. As on and from the first day of July one thousand nine hundred and fourteen (which is hereinafter referred to as "the date of vesting") the undertaking of the Scarborough Company shall be transferred to and vested in the Company.

A.D. 1914.
Vesting of
Scarborough
Company's
undertaking
in Company
and dissolu-
tion of Scar-
borough
Company.

The Scarborough Company shall as from the date of vesting be dissolved except for the purpose of winding up its affairs and of otherwise carrying into effect the provisions of this Act.

Such transfer and vesting shall be deemed to be an amalgamation of the undertaking of the Scarborough Company with the undertaking of the Company within the meaning of Part V. (relating to amalgamation) of the Railways Clauses Act 1863 and the provisions of the said Part V. shall extend and apply thereto accordingly subject to the provisions herein contained.

As from the date of vesting the Company shall hold the undertaking of the Scarborough Company freed and discharged from all debts liabilities obligations and engagements of the Scarborough Company on capital or revenue account and from all claims or demands whatsoever on the part of any of the creditors of the Scarborough Company or any other person or persons in respect of any debt or liability of the Scarborough Company or on the part of the holders of any of the stocks or shares in the Scarborough Company.

50. As soon as conveniently may be after the passing of this Act every registered holder of the four and a half per centum debenture stock of the Scarborough Company such stock amounting in the aggregate to the sum of seventy-two thousand pounds shall in lieu of and in exchange for every one hundred pounds in nominal value of such stock so held by him have issued and allotted to him by the Company and become and be the holder of one hundred and fifty pounds nominal value of North Eastern Railway debenture stock and so in proportion for any lesser amount.

Stocks of
Scarborough
Company to
be exchanged
for stocks of
Company.

As soon as conveniently may be after the passing of this Act every holder of ordinary stock of the Scarborough Company such stock amounting in the aggregate to the sum of two hundred and forty-four thousand two hundred and forty pounds shall in lieu of and in exchange for every one hundred pounds in nominal value of such stock so held by him have issued and allotted to him by the Company and become and be the holder

A.D. 1914. of forty-six pounds in nominal value of North Eastern consols and so in proportion for any lesser amount:

Provided that where the Company are for twelve months after the passing of this Act unable after diligent inquiry to ascertain the person to whom any stock ought to be issued as aforesaid or cannot obtain a sufficient discharge for the same the Company may transfer such stock to the Paymaster-General for and on behalf of the Supreme Court under any Act for the time being in force for the relief of trustees and every such transfer shall conclusively discharge the Company from all further liability with respect to any stock so transferred and for the purposes of this Act such stock shall be deemed to have been issued to the person entitled thereto and any person afterwards showing to the satisfaction of the court that he is entitled thereto may obtain transfer thereof accordingly.

If any certificate of any stock of the Scarborough Company in exchange for which any stock of the Company is to be issued under this Act be lost or destroyed then upon proof thereof and upon an indemnity being given against any claim in respect of such lost or destroyed certificate to the reasonable satisfaction of the directors of the Company the Company shall deliver to the person entitled to such certificate a certificate or certificates of the stock or stocks of the Company to which he would be entitled under this Act as if such first-mentioned certificate had been delivered to him as hereinbefore provided.

Capital of
Company
increased for
purposes of
vesting.

51. As on and from the date of vesting the capital which immediately before the date of vesting was the capital of the Company inclusive of debenture stock shall be increased in the manner and to the extent necessary to give effect to the provisions of this Act relating to such vesting and the capital so increased shall (subject to the provisions with respect to the raising of additional capital hereinafter contained) be the capital of the Company.

As to frac-
tional parts
of a pound of
stock.

52. Notwithstanding anything in this Act contained no person shall become entitled under this Act to any fractional part of a pound of stock of the Company but in every case in which any person would but for this enactment have become entitled to a fractional part of a pound of any such stock the Company may at their option receive from such person such a further sum in cash as will make up an even pound of stock or pay to such person in cash the market value of such fractional part.

53. The directors of the Company shall issue certificates of stock of the Company to the persons severally entitled thereto under the foregoing provisions of this Act under such conditions (if any) as they may reasonably determine with reference to delivery for cancellation or proof of the loss or destruction of the certificates of the stock of the Scarborough Company for which the said stock of the Company is substituted.

A.D. 1914.
Certificates
of new stock
to be issued
by Company.

54. Trustees executors and all other holders in any representative or fiduciary capacity of any existing stock of the Scarborough Company shall accept the stock of the Company issued or stock of the Company issued and cash paid to them in exchange therefor under the powers of this Act and may hold dispose of or otherwise deal with the same in all respects as they might have held disposed of or otherwise dealt with the stocks for which such stock is so issued or such stock is so issued and such cash is so paid by the Company.

Trustees &c.
to accept
stock of
Company in
exchange.

55. All stock issued or cash paid under the powers of this Act to any holder of stock of the Scarborough Company shall be held in the same rights on the same trusts and subject to the same powers provisions charges and liabilities as those in or subject to which the stock of the Scarborough Company for which such stock is substituted or cash paid was held immediately before the date of vesting and every deed or other instrument or any testamentary or other disposition of or affecting any such stock of the Scarborough Company shall take effect with reference to the whole or a proportionate part as the case may be of the stock or cash substituted therefor under the provisions of this Act.

Substituted
stocks to be
held on same
trusts.

56. As on and from the date of vesting all unexercised powers of raising money conferred upon the Scarborough Company by any Act of Parliament are hereby cancelled and repealed.

Unexercised
capital powers
of Scarborough
Company
repealed.

57.—(1) Notwithstanding the vesting of the undertaking of the Scarborough Company in the Company the secretary and other officers (if any) of the Scarborough Company shall not be or become officers of the Company but the Scarborough Company shall discharge all obligations which may be due to such secretary and officers respectively or any of them.

As to
directors and
officers of
Scarborough
Company.

(2) The Company shall have power to grant such pensions or to make such compensation as may be deemed expedient to

A.D. 1914. — any director of the Scarborough Company and to any officer or servant or any other person regularly employed by the Scarborough Company.

Rates and charges on Scarborough Railway after vesting. **58.** After the date of vesting the Company shall calculate the maximum rates chargeable in respect of the railway of the Scarborough Company as if that railway had formed part of the undertaking of the Company at the date of the passing of the Railway Rates and Charges No. 15 (North Eastern Railway &c.) Order Confirmation Act 1892.

Saving for Postmaster-General. **59.** Nothing in this Act shall affect the rights of His Majesty's Postmaster-General under the Telegraph Act 1878 to place and maintain telegraphic lines in under upon along over or across the railways and works comprised in the undertaking of the Scarborough Company and from time to time to alter such telegraphic lines and to enter upon the land and works comprised in such undertaking for the purposes in the Telegraph Act 1878 specified and the Postmaster-General shall after the passing of this Act be at liberty to exercise all the rights aforesaid notwithstanding that the undertaking of the Scarborough Company is transferred to and vested in the Company as freely and fully in all respects as he was entitled to do before the passing of this Act.

Power to acquire Brampton Branch Railway by agreement. **60.** The Company may by agreement take on lease or otherwise acquire the Brampton Branch Railway situate in the parish of Brampton in the county of Cumberland together with the sidings works coal depôts and conveniences connected therewith and the lands on which such railway and works have been constructed or which are held in connection therewith and subject to the terms of any such lease or other acquisition the Company may exercise and enjoy all rights easements and privileges to which the owner of such railway and works may be entitled in connection therewith and may maintain and work the said railway as if it had been originally authorised as part of their undertaking and the Company may demand receive and take in respect of the said railway for the conveyance of merchandise thereon (including perishable merchandise by passenger train) the maximum rates and charges authorised by the Railway Rates and Charges No. 15 (North Eastern Railway &c.) Order Confirmation Act 1892 and for the conveyance thereon of passengers and parcels by passenger train such reasonable tolls rates and charges in respect thereof as they may from time to time determine.

61. Any person who shall unlawfully throw or cause to fall or strike at against into or upon any engine tender carriage or truck used upon any of the railways now or hereafter belonging or leased to or worked by the Company solely or in conjunction with any other company or companies or by any joint committee on which the Company is represented any wood stone or other matter or thing shall on conviction be liable to a penalty not exceeding forty shillings and the provisions of the Railways Clauses Consolidation Act 1845 with respect to the recovery of damages not specially provided for and of penalties and to the determination of any other matters referred to justices shall apply to this enactment Where the person charged is a male under the age of fourteen years the court of summary jurisdiction before whom the offender is charged shall on conviction have the same powers as are conferred upon them by section 10 subsection (1) (D) of the Summary Jurisdiction Act 1879.

A.D. 1914.
Stone throw-
ing at trains.

62. Any person who shall without reasonable and sufficient cause make use of any means of communication between the passengers and the servants of the Company in charge of any train travelling on the railways now or hereafter belonging or leased to or worked by the Company solely or in conjunction with any other company or companies or by any joint committee on which the Company are represented shall on conviction be liable to a penalty not exceeding five pounds and the provisions of the Railways Clauses Consolidation Act 1845 with respect to the recovery of damages not specially provided for and of penalties and to the determination of any other matters referred to justices shall apply to this enactment.

Unlawful use
of means of
communica-
tion.

63. The Company may raise by the creation and issue of new stock the sum of six hundred thousand pounds in addition to the moneys which they are or may be authorised to raise by any other Act or Acts of Parliament and such new stock may be created and issued either wholly or partially as preference stock.

Power to
Company
to raise
additional
capital.

64. The new stock by this Act authorised shall unless otherwise provided by the terms of issue or creation thereof confer on the respective holders thereof the same rights of voting and qualifications as if such new stock were part of the existing stock of the Company.

Rights of
voting for
new stock in
capital of
Company.

A.D. 1914.

New preference
stock to rank
pari passu
with North
Eastern Rail-
way preference
stock if so
determined.

65. The Company may by the resolution creating or authorising the creation of any of the new preference stock by this Act authorised determine that such new stock shall form part of and rank pari passu with the North Eastern Railway preference stock created and issued under the powers contained in the North Eastern Railway Act 1895.

As to dis-
posal of new
stock.

66. Notwithstanding anything contained in Part II. of the Companies Clauses Act 1863 the Company may in issuing any of the new stock by this Act authorised dispose of the same at such times to such persons on such terms and conditions and in such manner as the directors think advantageous to the Company.

Power to
borrow.

67. The Company may borrow on mortgage of their undertaking in addition to any other sums which they are or may be authorised to borrow by any other Act or Acts of Parliament any sum or sums not exceeding in the whole one-third part of the amount of the new stock by this Act authorised to be created and issued and at the time actually issued and accepted.

But no part thereof shall be borrowed until a sum equal to one half of the stock so issued and accepted has been bonâ fide paid in respect thereof and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such stock is held by the persons to whom the same was issued or their executors administrators successors or assigns and that the said sum has been bonâ fide paid in respect thereof.

Upon production to such justice of the books of the Company and of such other evidence as he may think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

For appoint-
ment of a
receiver.

68. Every provision in any Act passed before the present session of Parliament whereby the Company are authorised to raise by borrowing money for the purposes of their undertaking with respect to the appointment of a receiver for enforcing payment by the Company of arrears of principal money or interest or principal money and interest shall be and the same is hereby repealed but without prejudice to any appointment which may have been made or to the continuance of any

proceedings which may have been commenced prior to the A.D. 1914. passing of this Act under any such provision.

The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

69. All mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act. Existing mortgages to have priority.

70. All moneys raised under this Act whether by stock or borrowing shall be applied only to the purposes of this Act and to the general purposes of the Company being in each case purposes to which capital is properly applicable. Application of moneys.

71. The Company may appropriate and apply to all or any of the purposes or objects of this Act being purposes to which capital is properly applicable any of the moneys which under and by virtue of any existing Acts they have raised or are authorised to raise and which may not be required for the purposes to which they are by those Acts made specially applicable. Power to Company to apply funds.

72. The Midland Great Central Great Northern and Lancashire and Yorkshire Railway Companies and the Joint Committee respectively may apply to the purposes of this Act in which they are respectively interested and to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts and which are not required for the purposes to which they are by those Acts made specially applicable. Power to Joint Committee &c. to apply funds.

73. No interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company Interest not to be paid on calls paid up.

A.D. 1914. — from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Closing
books for re-
gistration of
transfers of
stocks and
shares.

74. In lieu of the powers of closing the register and books of transfer of the Company conferred upon the directors of the Company by section 4 of the Railway Companies (Accounts and Returns) Act 1911 the directors of the Company may close their register and books of transfer for fourteen days before and fourteen days after the date on which an interim dividend is declared in the same manner and subject to the same provisions as they may close their register or books of transfer before the date on which their ordinary dividend is declared or before the date of their ordinary meeting.

Deposits for
future Bills
not to be
paid out of
capital.

75. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

Provision as
to general
Railway
Acts.

76. Nothing in this Act contained shall exempt the Company or any other company or committee upon whom any powers are conferred by this Act or their respective railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the said companies and committees respectively.

Saving for
Trinity
House of
Deptford
Strond.

77. Nothing in this Act contained shall prejudice or affect the powers rights and privileges of the Corporation of Trinity House of Deptford Strond.

Saving
rights of
Duchy of
Lancaster.

78. Nothing contained in this Act shall extend or operate to authorise the Joint Committee to take use enter upon or in any manner interfere with any land soil water or hereditaments or any land parcel of any manor or any manorial rights or any other rights of whatsoever description belonging to His Majesty

in right of His duchy of Lancaster without the consent in writing of the chancellor for the time being of the said duchy first had and obtained (which consent the said chancellor is hereby authorised to give) or take away prejudice or diminish any estate right privilege power or authority vested in or enjoyed or exercisable by His Majesty His heirs or successors in right of His said duchy: A.D. 1914.

Provided that for the purposes of the application of the Railways Clauses Consolidation Act 1845 the prescribed distance referred to in section 78 of that Act shall in respect of the mines and minerals belonging to His Majesty in right of His said duchy be two hundred yards.

79. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give). Crown rights.

80. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

A.D. 1914. The **SCHEDULE** referred to in the foregoing Act.

DESCRIBING PROPERTIES WHEREOF PORTIONS ONLY MAY BE
REQUIRED TO BE TAKEN BY THE COMPANY.

Numbers on deposited Plans.	Description of Property in Book of Reference.
	WIDENING AND ALTERATION OF NEWCASTLE AND BERWICK RAILWAY.
	URBAN DISTRICT OF LONGBENTON.
27	Dwelling-house confectioner's shop yard garden and outbuildings.
29	The "George Stephenson" Inn yard garden and outbuildings.
37	Field and cow-byre.
38	Field brickworks and road.
39	Dwelling-house yard garden outbuildings and road.
45	Garden.
51	Stables and wash-house.
53	Garden.
54	Garden.
56	Garden.
57	Dwelling-house yard garden and outbuildings.
80	Garden.
81	Garden.
82	Garden.
83	Garden.
92	Land tinsmith's shop and hen run.
96	Garden.
99	Garden.
106	Land and plantation.
107	Garden and plantation.
	RAILWAY No. 3.
	COUNTY BOROUGH OF MIDDLESBROUGH.
7	Store yard.
8	Drying shed.

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